

BC027966 BC027966

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-08-11

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Case Number: BC027966 Hearing Date: August 11, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 12:22 PM on August 10, 2026.

Rule

of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling of the court if the court has not directed oral argument by its tentative ruling and notice of intent to appear has not been given.”

The

Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1).

No

later than 4:00 p.m. on August 10, 2026, the moving and opposing parties must provide notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by

email to , with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court's receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

This

action was filed in 1991 to set aside a fraudulent transfer of property.

Petitioner

LaRue Lydell Zamorano, in pro per petition for equitable relief to permit

renewal of judgment and for equitable relief.

TENTATIVE RULING

Petitioner

LaRue Lydell Zamorano, in pro per's petition for equitable relief to permit renewal of judgment and for equitable relief is DENIED.

ANALYSIS

Discussion

Petitioner

LaRue Lydell Zamorano, in pro per petition for equitable relief to permit renewal of judgment and for equitable relief. The petition is DENIED for the following reasons.

First,

there is no proof of service of the hearing on this petition upon judgment debtors.

Second,

Petitioner claims he was two years old when judgment was entered in 1992. The following timeline reveals that this Petition is untimely.

March 25,

1992 – Judgment

was entered when moving judgment creditor was two years old.

March 25, 2002 – Judgment expired after 10

years pursuant to Code Civ. Proc. § 683.020. There is no tolling provision during minority as to § 683.020. However, a judgment creditor may also file an independent action to enforce a judgment within 10 years prior to expiration pursuant to Code Civ. Proc. § 337.5(b).

In 2008 – Judgment creditor

turns 18. While the judgment had expired six years prior, the tolling of the statute of limitations set forth in Code Civ. Proc. § 337.5(b) began to run in 2008.

[T]he statute of limitations is tolled during Christopher's minority, at least as to causes of action in which Christopher is the real party in interest. (Code Civ. Proc., § 352, subd. (a)(1); Epstein v. Frank (1981) 125 Cal.App.3d 111, 122 [177 Cal.Rptr. 831]; Van Buskirk v. Todd (1969) 269 Cal.App.2d 680, 689 [75 Cal.Rptr. 280].)

(Schultz v. Harney (1994) 27 Cal.App.4th 1611, 1623.)

However, even if the statute of limitations set forth in Code Civ. Proc. 337.5(b) was tolled from 2022 until 2008 due to judgment creditor's minority, such that the SOL began to run in 2008, that 10-year statute of limitations expired in 2018.

This petition was not filed until 2026. It is untimely under any analysis.